

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

**STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,
Petitioner,**

vs.

**WILLIAM RYAN RICE, LPC
LICENSE NO. 11281
Respondent.**

Complaint No. 2023-LPC-372



CONSENT ORDER

COMES NOW the State of Oklahoma, ex rel, the State Board of Behavioral Health Licensure (“the Board”) by and through its attorney, Liz Stevens, Assistant Attorney General, and William Rice (“Respondent”), and hereby enter into this Consent Order, pursuant to 59 O.S. §1912(A) of the Licensed Professional Counselors Act, 86:10-29-3(b)(2)(C) of the Oklahoma Administrative Code, and 75 O.S. §309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated to by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 11281, and was licensed on or about February 10, 2023.
2. On or about September 11, 2023, the Board received a Request for Inquiry (“RFI”) alleging respondent engaged in a sexual dual relationship with a former client, K.G., after his employer received a sexually explicit video from K.G. The Board assigned the RFI to Attorney General Agent Tony Blasier for investigation.

3. Agent Blasier sent the allegations to Respondent and requested a response within 10 days. Respondents response to the Agent Blasier read, in pertinent part,

“[O]n August 31st, I was working on progress notes following my 11:00 session when I received an email from what seemed to be a telephone number asking me if I was at lunch. I responded that I was at lunch. I received more messages from this number but did not respond to them. After completing my notes, I went to lunch and when I returned from lunch I was made aware by Mrs. Dixon that the office had received the video described above.”

4. Agent Blasier interviewed Respondent as part of the investigation. During the interview, Respondent admitted to having sexual relations with K.G. on August 31, 2023. Specifically, Respondent admitted to receiving text messages from K.G. on August 31st. and leaving his office to go to K.G.’s home after receiving a text message which read “we are going to fuck.” Respondent admitted that when he arrived, K.G. performed oral sex on him and then they engaged in vaginal intercourse.

5. In order to resolve all issues raised in the Request for Inquiry filed in this matter, the parties agree to the below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. §1905(B)(4) of the Licensed Professional Counselors Act.
2. Pursuant to 59 O.S. §1912(A)(5) of the Licensed Professional Counselors Act, the Board has the authority to deny, revoke, suspend, or place on probation any license if that license holder has engaged in unprofessional conduct.
3. Pursuant to 59 O.S. §1913.1(B), the Board has the authority to impose an administrative penalty not to exceed ten thousand dollars (\$10,000) on any person who is determined to have violated any provision of the Licensed Professional Counselors Act or any rule

promulgated, or order issued pursuant hereto.

4. Respondent agrees that he did not comply with the Licensed Professional Counselor Act nor the Oklahoma Administrative Code. Respondent violated the following:

86:10-3-3. Client welfare

(f) Interaction with former clients. LPCs shall not knowingly enter into a close personal relationship, or engage in any business or financial dealings with a former client for five (5) years after the termination of the counseling relationship. LPCs shall not engage in any activity that is or may be sexual in nature, as defined by the Board, with a former client after the termination of the counseling relationship. Sexual conduct with former clients is prohibited. LPCs shall not exploit or obtain an advantage over a former client by the use of information or trust gained during the counseling relationship.

86:10-3-4. Professional Standards

(c) Sexual Conduct. (1) Current and previous clients. Sexual conduct with current and previous clients is prohibited.

(e) Candor to the Board. A LPC or applicant for LPC licensure, in connection with a license application or an investigation conducted by the Board or the Board's designee pursuant to OAC 86:10-29-1 through 15, shall not:

- (1) knowingly make a false statement of material fact;
- (2) fail to disclose a fact necessary to correct a misapprehension known by the LPC, LPC candidate or applicant for licensure to have arisen in the application or the matter under investigation; or
- (3) fail to respond to a demand for information made by the Board or any designated representative thereof.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Respondent shall voluntarily surrender his LPC license.
2. Respondent shall not reapply for a LPC license for a for a period of at least three (3) years.
3. Respondent understands and agrees that should any future instances be brought to the attention of the Board in which Respondent has violated the Licensed Professional Counselor Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such

violations and to consider this Consent Order as a factor in the determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.

4. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent, including, but not limited to, the suspension or revocation of Respondent's license.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board and endorsed by a representative of the Board.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for April 12, 2024. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against him at the subsequent disciplinary hearing. Respondent will be free to defend himself and no inferences will be made from his willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be

deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of his rights to contest the allegations pending against him. Respondent acknowledges these rights include: representation by an attorney at his own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify against him; the right to present evidence on his own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on his own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the Complaint and the right to obtain judicial review of the Board's decision. Respondent in exchange for the Board's acceptance of this Consent Order voluntarily waives all of these rights.

COMPLETE AGREEMENT

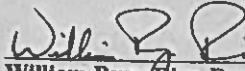
This Consent Order consists of six (6) pages, inclusive of signature pages, and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.



AMY BARNETT, LPC CC Board Member

Dated this 12th day of April, 2024.

I have read the entirety of this Consent Order. I understand that by its terms I waive certain rights accorded me under Oklahoma law. I agree to this Consent Order:

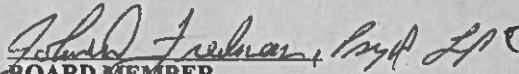

William Ryan Rice, Respondent

Dated this 18th day of March, 2024.

IT IS SO ORDERED.

STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

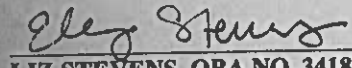
By:


BOARD MEMBER

Dated this 12 day of April, 2024.

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interests of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as outlined in the foregoing Consent Order.


LIZ STEVENS, OBA NO. 34185
Assistant Attorney General
State of Oklahoma
313 N.E. 21st Street
Oklahoma City, Oklahoma 73105
(405) 522-4398; FAX (405) 522-4536

Dated this 12 day of April, 2024.

**ATTORNEY FOR THE STATE OF OKLAHOMA
STATE BOARD OF BEHAVIORAL HEALTH**